

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
GABRIEL D'ORTENZIO,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
GENESIS ROSARIO, Tax ID 964742, SERGEANT
ANGEL CASILIMAS, and POLICE OFFICER JOHN
DOES NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants. Plaintiff designates Queens
County as the place of trial.

----- X
To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 19, 2019

Yours, etc.



CAITLIN ROBIN, ESQ.

CAITLIN ROBIN AND ASSOCIATES PLLC

Attorney for Plaintiff

30 Broad Street Suite 702

New York, New York 10004

(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER GENESIS ROSARIO, Tax ID 964742, NYPD 104TH Precinct,
6402 Catalpa Avenue, Ridgewood, NY 11385

SERGEANT ANGEL CASIMILAS, NYPD 104TH Precinct, 6402 Catalpa
Avenue, Ridgewood, NY 11385

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
GABRIEL D'ORTENZIO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER GENESIS
ROSARIO, Tax ID 964742, SERGEANT ANGEL
CASILIMAS, and POLICE OFFICER JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.
----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff GABRIEL D'ORTENZIO, by his attorneys, Caitlin Robin & Associates, PLLC,
as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 8, 2019, at approximately 6:00 p.m., plaintiff Gabriel D'Ortenzio, while lawfully present inside Laser Bounce, located at 80-28 Cooper Avenue, Queens, New York, was subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial until all charges against plaintiff were dismissed and sealed in their entirety on or about June 25, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff GABRIEL D'ORTENZIO is a resident of the state of New York.
3. POLICE OFFICER GENESIS ROSARIO, Tax ID 964742, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER GENESIS ROSARIO, Tax ID 964742, was at all times relevant herein, assigned to the 104th Precinct.

5. POLICE OFFICER GENESIS ROSARIO, Tax ID 964742, is being sued in his individual and official capacity.

6. SERGEANT ANGEL CASIMILAS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ANGEL CASIMILAS, was at all times relevant herein, assigned to the 104th Precinct.

8. SERGEANT ANGEL CASIMILAS, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officer John Does Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on August 12, 2019.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On November 9, 2018 at approximately 6:00 p.m., plaintiff was lawfully present inside Laser Bounce, located at 80-28 Cooper Avenue, Queens, New York, when the defendant police officers unlawfully handcuffed and falsely arrested plaintiff without probable cause, or any legal justification.

19. Plaintiff was working as an employee at Laser Bounce, located at 80-28 Cooper Avenue.

20. Some of the duties and responsibilities of Plaintiffs employment are to make sure the Laser Tag vests and guns function properly.

21. Throughout the course of his shift, Plaintiff helped numerous children re-plug their laser tag vests so that they would properly function.

22. At approximately 4:00 p.m., multiple defendant police officers were called to Laser Bounce about a report of forcible touching.

23. The Defendant police officers, including Defendants Rosario and Casimilas, arrived at Laser Bounce and watched video surveillance of the alleged forcible touching.

24. No crime occurred on the video surveillance.

25. Despite no crime occurring, Defendant Rosario unlawfully placed Plaintiff under arrest.

26. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse plaintiff committing a crime or violating the law in any way.

27. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

28. At no point in time did plaintiff resist arrest in any way.

29. Plaintiff was transported to the 104th Precinct for processing.

30. Plaintiff was then transported to Queens Central Bookings.

31. Defendant Police Officers made a copy of the video surveillance and brought it to the Queens County District Attorneys office.

32. The video surveillance contained the entire alleged incident.

33. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff committed a crime, even though they had video surveillance in their position showing Defendant's innocence.

34. On November 10, 2019, at approximately 4:00 p.m., after approximately 24 hours in unlawful custody, plaintiff was arraigned in Queens Criminal Court, and charged with crimes that the defendant officers had no basis to alleged that he committed.

35. Plaintiff was unlawfully charged with Forcible Touching of a minor and other related charges.

36. The Judge released Plaintiff on his own recognizance and was given a new Court date.

37. Plaintiff was suspended at his job at Laser Bounce as a result of the unlawful arrest.

38. Plaintiff hired a private defense attorney for \$15,000.

39. The Defendant Officers leaked false information to the news, specifically that Defendant was a child molestor, which was posted online on news websites.

40. Plaintiff was unable to get a new job while this case was pending because of the nature of the open charges and the false press articles.

41. As a result of facing 1 year in jail, and sex offender registration, based on these false charges, Plaintiff developed severe depression and other related issues.

42. Plaintiff has been seeing multiple psychiatrists and therapists to treat his depression and other related symptoms.

43. Plaintiff was forced to come back to Court approximately 15 times until Plaintiff went to trial.

44. At the criminal trial, Defendant Rosario testified that she arrested the defendant despite the video showing no crime occurring.

45. At the criminal trial, Defendant Rosario testified that she did not believe Plaintiff committed any crime.

46. On or about June 25, 2019, the Judge dismissed all charges, because the video of the incident showed no crime occurring.

47. All charges against Plaintiff were dismissed and sealed on or about June 25, 2019.

48. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, denying the right to due process and a fair trial, and maliciously prosecuting of plaintiff.

49. The unlawful, search, seizure, false arrest and imprisonment, denial of the right to a fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search plaintiff.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

70. In withholding/creating false evidence against plaintiff Stefan Williams, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

71. As a result of the foregoing, plaintiff GABRIEL D'ORTENZIO sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, GABRIEL D'ORTENZIO. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

77. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

78. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

87. Defendants failed to intervene to prevent the unlawful conduct described herein.

88. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

89. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

95. Defendants commenced and continued a criminal proceeding against plaintiff.

96. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

97. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

98. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

102. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff GABRIEL D'ORTENZIO demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 19, 2019

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702

New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER GENESIS ROSARIO, Tax ID 964742, NYPD 104TH Precinct,
6402 Catalpa Avenue, Ridgewood, NY 11385

SERGEANT ANGEL CASIMILAS, NYPD 104TH Precinct, 6402 Catalpa
Avenue, Ridgewood, NY 11385

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 19, 2019


CAITLIN ROBIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

GABRIEL D'ORTENZIO,

Plaintiff,

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DOES NUMBERS ONE THROUGH TEN,

Defendants.

SUMMONS AND COMPLAINT

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